

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

I registered on an online lending application and allowed access to my contacts because the app said it was necessary for processing the loan. After I missed one instalment, the company began calling people from my contact list and telling them about my loan. Some contacts also received messages containing my photograph and personal details. I never agreed to this use of my information. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 9/Information Technology (IT) Act, 2000

Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 72A

— Punishment for disclosure of information in breach of lawful contract

Potentially relevant if the lender/service provider obtained personal information under a lawful contract and disclosed it without consent/in breach of contract with the intent or knowledge required by **section 72A** .

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 72A** is conditional because its mental-state and lawful-contract elements must be established. Ordinary sharing of a non-intimate photograph does not by itself create a private-area image offence.

✓ STRENGTHS & RIGHTS

- 1** The app obtained contact-list access in connection with a service relationship and then disclosed loan/personal details to those contacts.

✗ RISKS & OBLIGATIONS

- 1** Do not treat an ordinary profile photograph as a private-area image.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** Preserve permissions screens, privacy notices, collection-purpose statements and messages sent to contacts.

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